

Court No. - 9

Case :- WRIT - C No. - 25431 of 2008

Petitioner :- Shamsul Qamar

Respondent :- Pvvnl And Others

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- C.S.C.,H.P. Dubey

Hon'ble Rakesh Tiwari,J.

Hon'ble Vijay Prakash Pathak,J.

Sri Nripendra Misra, learned counsel for the respondents has sent illness slip.

List after two weeks peremptorily.

Order Date :- 11.11.2011

AKJ

Court No. - 3

Case :- WRIT - C No. - 25431 of 2008

Petitioner :- Shamsul Qamar

Respondent :- Pvvnl And Others

Counsel for Petitioner :- B.C. Rai

Counsel for Respondent :- C.S.C., N.Mishra

Hon'ble Pritinker Diwaker,J.

Hon'ble Saral Srivastava,J.

Heard Sri B.C. Rai, learned counsel for the petitioner and Sri Nipendra Mishra for respondent nos. 2 and 3.

Learned counsel for the petitioner submits that he has to seek instructions as to whether the petitioner is still interested to prosecute the case or not.

At the request of learned counsel for the petitioner, list this case on 27.11.2018.

Order Date :- 14.11.2018

AKK/A.K. Pandey

Court No. - 39

Case :- WRIT - C No. - 25431 of 2008

Petitioner :- Shamsul Qamar

Respondent :- Pvvnl And Others

Counsel for Petitioner :- B.C. Rai

Counsel for Respondent :- C.S.C.,H.P. Dubey,N.Mishra

Hon'ble B. Amit Sthalekar,J.

Hon'ble Piyush Agrawal,J.

On the request of Sri Deepak Kumar Pandey holding brief of Sri B.C. Rai, learned counsel for the petitioner, list peremptorily on 5th December, 2018.

Sri Nripendra Mishra is present for the respondents.

Order Date :- 27.11.2018

N Tiwari

Court No. - 39

Case :- WRIT - C No. - 25431 of 2008

Petitioner :- Shamsul Qamar

Respondent :- Pvvnl And Others

Counsel for Petitioner :- B.C. Rai

Counsel for Respondent :- C.S.C.,H.P. Dubey,N.Mishra

Hon'ble B. Amit Sthalekar,J.

Hon'ble Piyush Agrawal,J.

Sri Deepak Kumar Pandey holding brief of Sri B.C. Rai, learned counsel for the petitioner prays that matter may come up after 10 days to enable him to complete his papers.

List peremptorily on 14th December, 2018 with the understanding that the matter will not be adjourned on the next date.

Order Date :- 5.12.2018

Ashutosh Pandey

Court No. - 39

Case :- WRIT - C No. - 25431 of 2008

Petitioner :- Shamsul Qamar

Respondent :- Pvvnl And Others

Counsel for Petitioner :- B.C. Rai

Counsel for Respondent :- C.S.C.,H.P. Dubey,N.Mishra

Hon'ble B. Amit Sthalekar,J.

Hon'ble Piyush Agrawal,J.

Heard Sri B.C. Rai, learned counsel for the petitioner and Sri Nipendra Mishra, learned counsel for the respondents.

Briefly stated, the facts of the case are that the petitioner is running an ice factory in the name of M/s. Amna Mini Cold Storage situate at village Mustafabad, Rampur Road, Moradabad. It is stated that the petitioner's unit falls under LMV-6 category which is applied in the case of LT consumers. On 19.11.2007 the premises of the petitioner was inspected by the officials of the Electricity Department. An inspection report was made in which it was stated that the meter was displaying magnetic tamper and the meter was removed by the officers of the department and was sent for laboratory testing. In the meantime, a provisional assessment bill was prepared on 28.11.2007 which is under challenge in this writ petition.

The submission of Sri B.C. Rai, learned counsel for the petitioner is that inspection report dated 19.11.2007 itself mentions as a condition no. (4) that the old meter is being sent for laboratory testing, the report of which will be binding upon the parties. This inspection report has been filed at page 33 & 34 of the writ petition. The contention of the learned counsel for the petitioner is that in terms of the provisions of clause 8.1(vii) read with clause 5.6 of the Electricity Supply Code, 2005, a report is required to be supplied to the petitioner before it can be alleged that the consumer is involved in theft of electricity.

Clause 8.1(vii) of the Electricity Supply Code, 2005 reads as under :

"8.1(vii) In case of prima facie evidence of theft by tampering of meter or metering equipment in case of domestic LT Light and Fan consumers, the meter shall be removed, properly sealed and tested in accordance with procedure laid down in clause 5.6. The supply shall be restored through a new meter or metering equipment of appropriate rating. In other cases of LT/HT connections, the supply may be disconnected if there is a prima-facie evidence of theft as recorded by photographs/MRI reports for TVM meters, or where removal of evidence by consumer is apprehended. The report shall be prepared at site as per sub-clause (v) & (vi) above. Where MRI report is the evidence of tampering, a copy of the same shall be sent to the consumer in seven working days."

In paragraph 15 of the writ petition, a categorical averment has been made by the petitioner that neither the meter was tested as per the provisions of clause 8.1(vii) nor any information fixing any date in respect of testing of the meter has been given to the petitioner. In paragraph

16 of the writ petition, the petitioner has further alleged that till date no report/result of the meter testing has been provided to him. The averments of paragraphs 15 & 16 have not been denied in paragraph 14 of the counter affidavit and all that has been stated is that the petitioner may file his objection under Section 126(3) of the Electricity Act. Copy of the provisional assessment bill has been filed as annexure-6 to the writ petition. This bill does not disclose the contents of or even mention the report of the laboratory with regard to the testing of the old meter of the petitioner. Unless the report of the meter is provided to the petitioner we fail to understand or appreciate as to how the petitioner can file his objections. Even otherwise, the condition no. (4) of the inspection report makes it clear that the report of the laboratory with regard to the old meter shall be final between the parties. There is nothing on record to show that any report has been made available from the laboratory with regard to the old meter of the petitioner or that he has been provided a copy of the same.

For reasons aforesaid, we find that the provisional assessment bill is absolutely illegal and arbitrary and in violation of the procedure prescribed in clause 8.1(vii) of the Electricity Supply Code, 2005 and therefore, we quash the provisional assessment bill dated 28.11.2007.

The writ petition is allowed.

We, however, make it clear that it will be open to the Electricity Department to provide the laboratory testing report to the petitioner in respect of the old meter and thereafter, the department will issue fresh provisional assessment bill to the petitioner. If the laboratory report and provisional assessment bill are provided to the petitioner it will be open to him to file his objections thereto.

Order Date :- 14.12.2018

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